

IN THE 31ST JUDICIAL CIRCUIT OF GREENE COUNTY, MISSOURI
CIRCUIT CIVIL DIVISION

NSI, A.1, LLC,

Plaintiff,

v.

CITY OF SPRINGFIELD, MISSOURI,

Defendant.

Case No. 2631-CC01131

**PLAINTIFF'S MOTION FOR EXPEDITED HEARING AND PRELIMINARY
INJUNCTION, WITH SUGGESTIONS IN SUPPORT**

RELIEF REQUESTED

1. Plaintiff NSI, A.1, LLC ("NSI A1") moves under Rule 92.02 and §§ 526.030, 526.050, and 526.070, RSMo, for an expedited noticed hearing and a narrowly tailored preliminary injunction preserving access to the City's ordinary application process while this action is decided.

2. The requested order would prohibit Defendant City of Springfield from applying Special Ordinance 28306 to refuse acceptance or ordinary processing of complete submissions concerning NSI A1's proposed development at 2900 South National Avenue. *Exhibit A*, pp. 3–5.

3. It would not approve the development, guarantee utility service or capacity, waive any submission requirement or fee, bind the City to a merits result, or suspend any otherwise-valid code or health-and-safety standard.

4. NSI A1 does not request *ex parte* relief.

5. It requests prompt notice, an expedited evidentiary hearing, and such schedule as will permit meaningful adjudication before the ordinance consumes the limited period it governs.

6. Alternatively, even if the Court sustains the ordinance, NSI A1 requests a declaration and preliminary protection of the predevelopment work that the City itself has

represented may continue, together with equitable relief against use of the City-directed review sequence and subsequent reversal to foreclose ordinary review.

7. These alternative grounds supplement the facial claims and do not concede the ordinance's validity.

MATERIAL RECORD

8. PD 251 presently governs the property and expressly permits 'Administrative and Professional Offices,' identifying 'data processing services' and 'corporate offices' as typical uses within that category, subject to PD 251's remaining requirements and final-development-plan review. *Exhibit B*, pp. 12–13, 17.

9. NSI A1 presented an integrated office and digital infrastructure layout through PREDEV2026-00192. *Exhibit G*, p. 3.

10. Planning staff initially stated in writing that the proposed 'mixed-use office' appeared permitted because office space exceeded fifty percent of active building area and the computing area was below fifty percent. *Exhibit G*, p. 3.

11. Those communications were allegedly preliminary, but they explain NSI A1's reliance and its concrete need for ordinary application-level review. *Exhibits C and G*.

12. On May 26, 2026, the City acknowledged receipt of NSI A1's "Pre-Application Review application" for PREDEV2026-00192, assigned the property and case number, and stated that staff would review the application and schedule a meeting. *Exhibit D*, pp. 1–2.

13. The notice described a no-cost preliminary stage before permits or formal applications and encouraged detailed plans and participation by professional consultants. *Exhibit D*, pp. 1–2.

14. On June 1, the City scheduled the Project's pre-application meeting for June 10. *Exhibit E*, p. 1.

15. On June 2, City Utilities' Josh Casey described predevelopment as a "free but mandatory process for any new land development project in the city," copied the City officials responsible for that process, and requested concept plans and use information before full design and construction documents for permit review. *Exhibit F*, p. 1.

16. The departmental review summary demonstrates actual project-specific review: planning evaluated the office and computing layout, City Utilities addressed capacity up to 10 MW and developer-funded distribution improvements, and other departments addressed fire protection, stormwater, and later submission requirements. *Exhibit G*, pp. 1–3.

17. This organized, documented intake and review has evidentiary significance even though it did not grant a final permit.

18. The summary also expressly reserved changes in preliminary comments, including changes resulting from new regulations, and disclaimed a complete or final review. *Exhibit G*, p. 3.

19. The City's June 30 letter asserted that February and March e-mails did not disclose the full scope later shown in the May submissions. *Exhibit H*, pp. 1+2.

20. NSI A1's reliance argument therefore turns on the information actually disclosed at each stage, the officials' authority, and the particular expenses and procedural decisions induced; it does not treat the early communications as unconditional approval of undisclosed technical details.

21. The anticipated electrical demand for the Project is approximately 9.9 megawatts. *Exhibit I*, p. 2.

22. Ordinance 28306 therefore reaches the Project through its independent electrical-demand criterion even if computing functions are accessory by floor area. *Exhibit A*, § 4(a).

23. That moratorium-specific criterion does not itself resolve the Project's permitted-use classification under PD 251.

24. Ordinance 28306 allegedly became effective immediately on June 29, 2026. *Exhibit A*, pp. 3–5.

25. It purportedly prevents the City and its Board of Public Utilities from accepting or processing a broad range of applications concerning the evaluation, establishment, servicing, or expansion of a use the ordinance defines as a “data center” through November 17, 2026, subject only to a narrow grandfather provision and discretionary City Council resolution. *Exhibit A*, §§ 2, 4–5.

26. The enacted Section 2 exception is specific: continuation is allowed to the extent necessary to fulfill SPP requirements for studies already begun where fees have been submitted to the Board of Public Utilities with a large-load electric-service application. *Exhibit A*, § 2.

27. It is not a general exemption for every project that entered predevelopment before June 29. *Exhibit A*, § 2, lines 58–62.

28. The present predevelopment records establish neither commencement of SPP studies nor submission of the fees and large-load application required by that exception.

29. NSI A1 does not equate a free mandatory review, its private engineering expenditures, or staff zoning assurances with those distinct predicates.

30. Its presently supported alternative claim instead asks the Court to determine the scope of the moratorium and preserve the preliminary work the City says remains outside the prohibited processing.

31. The City and City Utilities have applied the ordinance to halt Project review. *Exhibits H-J*.

32. City Utilities stated that it could not process the Project's electric-service application during the pause. *Exhibit I*, p. 2.

33. The City's September 9 public statement confirmed that no application classified by the City as a "data-center" application can be filed during the pause.

34. NSI A1 sought a Section 5 resolution allowing limited processing and evaluation, not project approval. *Exhibit K*, pp. 1–4.

35. No relief had been granted as of this filing.

36. The legislative file presently available reflects filing on June 16, first reading on June 22, and passage on June 29, but does not reflect a Planning and Zoning Commission referral and final report or a zoning hearing preceded by at least fifteen days' published notice under § 89.050. *Exhibit A*, pp. 1–5; *Exhibits M–O*.

37. On July 21, 2026, the City advised through counsel that predevelopment review was the best mechanism for NSI A1 to continue work during the administrative delay, that City and City Utilities staff could continue communicating through that process, and that the work could support a Section 5 review. *Exhibit J*, pp. 6–7.

38. On July 24, 2026, City Utilities instead advised that it could not accept or process applications it classified as related to "data centers," including in-progress applications, until November 17, 2026 and could provide only general, non-application-related guidance. *Exhibit I*, pp. 2–3.

39. After NSI A1 requested project-specific capacity, infrastructure, phasing, cost, and next-step information on July 27, City Utilities responded on August 5 that it had provided

all necessary input to predevelopment and directed NSI A1 to pursue a Council exception. *Exhibit I*, pp. 1–2.

40. NSI A1 sought practical clarification on July 31, tendered a narrowly limited Section 5 resolution request on August 17, and followed up on August 31 after receiving no response. *Exhibit J*, pp. 3–5; *Exhibit K*.

41. A September 2 call produced only a proposed September 29 or 30 staff conference and no confirmation of Council agenda placement, resumed project-specific utility review, or another functioning path for the represented predevelopment work. *Exhibit J*, pp. 1–2.

42. The City’s published final enactment calls itself an ordinance but substitutes ‘BE IT RESOLVED’ for Charter § 2.12’s prescribed ‘BE IT ORDAINED’ clause and states on its signature page, ‘Filed as Resolution: June 29, 2026’. *Exhibit A*, pp. 4–5.

43. On June 24, 2026, NSI A1 submitted Sunshine Request No. R025670-062426 for the City’s records concerning the Project, Ordinance 28306, the moratorium’s enactment, and its implementation. *Exhibit L*, pp. 1–3.

44. After a limited production, the City quoted a \$427.98 electronic-search charge and a \$213.99 deposit on July 2, NSI A1 accepted the charge and requested payment instructions on July 9, and the City thereafter supplied no invoice, payment method, further production, explanation, or new production date through September 11. *Exhibit M*, pp. 1–3; *Exhibit N*, pp. 1–6.

45. The City’s GovQA portal showed no balance or invoice, the fifteen-file partial production omitted the core e-mail, Teams, calendar, meeting, vote, and final-enactment records requested, and the CityView Council-meeting archive captured on September 11 omitted the June 29 special meeting. *Exhibits N–O*.

GOVERNING STANDARD

46. Preliminary relief calls for flexible consideration of the threat of irreparable harm to the movant, the balance between that harm and injury the injunction would inflict on others, the probability of success on the merits, and the public interest under *State ex rel. Director of Revenue v. Gabbert*, 925 S.W.2d 838, 839 (Mo. banc 1996), and *Comprehensive Health of Planned Parenthood Great Plains v. State*, 729 S.W.3d 222, 226 (Mo. banc 2025).

47. Because NSI A1 seeks to restrain enforcement of an enacted municipal measure, the merits showing matters substantially.

48. Here, the proposed relief is limited to preserving the pre-ordinance application process until the Court can decide the facial validity question.

49. The Court may also grant narrower relief on the alternative grounds below without resolving facial validity.

50. A ruling permitting specified ordinary predevelopment activities would leave formal permit decisions, technical standards, and utility commitments for the appropriate administrative process.

51. Rule 92.02 requires notice and an opportunity to be heard before a preliminary injunction issues and requires security before a non-final injunction becomes effective.

52. NSI A1 asks the Court to set an expedited noticed hearing and is prepared to post the security ordered.

ARGUMENTS¹

I. NSI A1 is likely to succeed on its pure facial Chapter 89 claim.

53. Missouri courts look to substance and effect when distinguishing zoning from other police-power regulation under *F.W. Disposal S., LLC v. St. Louis County*, 168 S.W.3d 607, 613–15 (Mo. App. E.D. 2005).

54. The same interpretive principle appears in *Worley v. Worley*, 19 S.W.3d 127 (Mo. banc 2000): “A pleading is judged by its subject matter—not its caption.”

55. *Worley* addressed a pleading, not a municipal enactment, and is cited by analogy; *F.W. Disposal* and *Holiday Park* supply the direct land-use authority.

56. The City’s description of this measure as an administrative delay cannot determine its legal character independently of what it does.

57. Temporary duration does not eliminate mandatory zoning procedures under *State ex rel. Holiday Park, Inc. v. City of Columbia*, 479 S.W.2d 422, 424 (Mo. 1972).

58. Springfield’s home rule status does not displace Chapter 89 as the source and limit of its zoning authority under *City of Springfield v. Goff*, 918 S.W.2d 786, 789–90 (Mo. banc 1996).

59. Ordinance 28306 is zoning in substance. *Exhibit A*, §§ 2, 4.

60. It defines a particular land use by electrical demand, consumption, and floor area, then suspends the full set of development approvals needed to establish or expand that use. *Exhibit A*, §§ 2, 4.

61. Unlike a generally applicable operational nuisance standard, it prevents a defined use from entering the land-development process at all. *Exhibit A*, § 2.

¹ For each below-raised argument, all preceding paragraphs of each argument and the sections before the same, are incorporated as if fully set forth therein.

62. The City may rely on *City of Green Ridge v. Kreisel*, 25 S.W.3d 559 (Mo. App. W.D. 2000).

63. That decision concerned uniform sanitary, fire-safety, enclosure, and recordkeeping rules for operating junkyards and stressed that the ordinance did not suspend or limit zoning law.

64. Ordinance 28306 does the opposite: it suspends zoning and development processing for one classified use. *Exhibit A*, § 2.

65. Sections 89.050 and 89.060 require a public hearing preceded by at least fifteen days' published notice before zoning legislation becomes effective.

66. Strict compliance is mandatory, and a deficient zoning enactment is void. *Arch Energy, L.C. v. City of Brentwood*, ED112714 *8 (Mo. App. E.D. 2025).

67. The currently available legislative file/record does not show the required process. *Exhibit A*, pp. 1–5; *Exhibits M–O*.

68. The claim is facial and legal.

69. It does not ask the Court to interpret a complete application or substitute its judgment for an administrative body.

70. *Arch Energy* recognizes that exhaustion does not bar a facial notice challenge because an administrative body cannot cure a void enactment.

II. Ordinance 28306 is independently invalid because the Council did not enact an ordinance in the manner required by the Charter.

71. NSI A1 is independently likely to succeed because the City's own final enactment demonstrates that Ordinance 28306 cannot satisfy either of the legal forms its text invokes. *Exhibit A*, pp. 4–5.

72. Springfield's Charter is the City's organic law, and §§ 2.12 and 2.16 require the Council to exercise the relevant legislative, zoning, police-power, and utility authority by ordinance containing the prescribed 'BE IT ORDAINED' clause under *Elevation Enterprises, LLC v. City of Springfield*, 646 S.W.3d 716, 720–21 (Mo. App. S.D. 2022).

73. The moratorium is legislative because it establishes a new citywide policy, defines the persons and uses subject to that policy, and prospectively withholds otherwise available governmental processes under *Rice v. Huff and Bernard*, 22 S.W.3d 774 (Mo. App. W.D. 2000).

74. Ordinance 28306 calls itself an ordinance in its heading and operative sections, but it uses 'BE IT RESOLVED' as its operative clause and was officially 'Filed as Resolution'. *Exhibit A*, pp. 3–5.

75. If the measure is a resolution, it lacks the force of law necessary to establish the moratorium, and if it is an ordinance, it omits the exact enactment language required by Charter § 2.12. *Client Services v. City of St. Charles*, 182 S.W.3d 718, 721–22 (Mo. App. E.D. 2006).

76. *State ex rel. Town of Olivette v. American Telephone & Telegraph Co.*, 280 S.W.2d 134, 136–38 (Mo. App. 1955), is closely analogous because it invalidated zoning action taken by motion where the charter conferred zoning power by ordinance and prescribed an ordinance's enacting clause.

77. *Schmitt v. City of Hazelwood*, 487 S.W.2d 882, 886–87 (Mo. App. 1972), does not assist the City because its substance-over-label rule applies only if the measure fulfills every ordinance requisite, while the face of Ordinance 28306 establishes noncompliance with an express requisite. *Exhibit A*, pp. 4–5.

78. *Worley*'s treatment of a pleading's caption does not dispense with legally required enactment procedures.

79. The Chapter 89 argument concerns the measure's regulatory substance; the Charter argument concerns compliance with the required method of exercising legislative power.

80. The two grounds are complementary.

81. The City's anticipated directory or substantial-compliance argument likewise fails because Charter § 2.12 prescribes the exact legal words by which an ordinance is enacted and declares that the specified procedure shall be used, while § 2.16 confers the relevant powers upon the Council by ordinance.

82. Unlike the collateral signature omission held directory in *Great Rivers Habitat Alliance v. City of St. Peters*, 384 S.W.3d 279, 291–93 (Mo. App. W.D. 2012), the defects here identify the measure as a different species of governmental action both in its operative clause and in the Clerk's filing notation. *Exhibit A*, pp. 4–5.

83. *Frye v. Levy*, 440 S.W.3d 405, 408–11 (Mo. banc 2014), does not authorize substantial compliance because §§ 2.12 and 2.16, read together, make the prescribed ordinance form the manner by which the Council exercises the relevant legislative power rather than imposing a collateral requirement after that power has been exercised.

84. The requested injunction would not approve the Project, compel utility capacity, or dictate new municipal policy but would prevent enforcement of an enactment that never acquired legal force and restore ordinary processing under otherwise-valid law.

II.A. The Court may declare the scope of the moratorium and preserve ordinary predevelopment review even if the ordinance is valid.

85. Section 527.020, RSMo, and Rule 87 permit adjudication of rights affected by a municipal ordinance, including a dispute about its construction.

86. Under Rule 55.10, this alternative claim may proceed alongside the facial challenges.

87. The present controversy concerns an existing Project and specific requests for review, rather than a hypothetical future permit.

88. The City's descriptions establish both the preliminary character and the formal organization of predevelopment. *Exhibits D–G.*

89. Its May 26 notice calls the submission an application, assigns a case number, provides an intake schedule, and promises staff review. *Exhibit D*, pp. 1–2.

90. Its June 2 communication describes that stage as mandatory and free. *Exhibit F*, p. 1.

91. A stage may precede a permit application while still constituting actual submission and review within the City's development system.

92. The absence of a fee at that stage does not establish the absence of City-directed processing.

93. That evidence supports NSI A1's participation and reliance, but it cannot erase Section 2's express SPP-study, fee, and large-load-application conditions. *Exhibit A*, § 2.

94. Even proof that PREDEV2026-00192 is an application in a general sense would not establish the enacted study exception.

95. Nor would that exception, if its predicates were proved, authorize all Project approvals; its relief is limited to the work necessary for the identified SPP studies. *Exhibit A*, § 2.

96. A separate question remains: if, as the City represents, predevelopment is preliminary work outside the formal processing suspended by Section 2, the ordinance supplies no basis to stop those same activities merely because they concern this Project.

97. The July 21 representation that City and City Utilities staff could continue working through predevelopment must be considered with the July 24 restriction to general guidance and the August 5 refusal of further project-specific input. *Exhibit J*, pp. 6–7; *Exhibit I*.

98. NSI A1 requests a declaration that Section 2 does not prohibit ordinary receipt and consideration of supplemental predevelopment materials, identification of submission requirements and known critical issues, or preliminary interdepartmental feedback of the kind provided in PREDEV2026-00192, insofar as those activities fall within the preliminary process the City has identified as outside the moratorium.

99. The order should identify the permitted activities and require their ordinary treatment without commanding a favorable recommendation, new SPP study, permit, or utility commitment.

100. Section 4 does not establish five megawatts as a minimum for every covered development because its electricity-consumption and floor-area tests are alternatives to its peak-demand test. *Exhibit A*, § 4, lines 86–96.

101. An ordinary office development with a small supporting server room could therefore satisfy the electricity-consumption test if the covered equipment accounts for at least fifty percent of the development's electricity, even though its demand remains below five megawatts.

102. That possibility illustrates the breadth of the ordinance's special definition without establishing that every office server room is covered or that operating an existing server room is itself prohibited by this application-processing moratorium.

103. Section 4(b) supplies no express measurement period or direction concerning actual versus projected consumption, and Section 4 shifts among a building, group of buildings, facility, premise, and development without expressly resolving the unit of measurement for shared or multitenant premises. *Exhibit A*, § 4.

104. Section 4(c) also allocates vacant and warehouse or storage space to the computing portion, so the calculation does not depend solely on the area actually occupied by computing equipment. *Exhibit A*, § 4, lines 90–96.

105. These features reinforce that the moratorium's special definition does not itself establish the Project's permitted-use classification under PD 251.

106. Section 5 presents an additional construction issue by requiring compliance with “all existing and foreseeable planned city regulations” without identifying which contemplated regulations supply the standards for an application during the pause. *Exhibit A*, § 5, lines 98–104.

107. NSI A1 requests a construction requiring identification of the particular foreseeable planned regulations invoked and their application to the requested limited review, rather than treating the mere possibility of future regulation as a sufficient basis to foreclose consideration.

108. The City's direction to seek Section 5 relief, coupled with its restriction of the project-specific input needed to address that section's infrastructure criteria, makes the uncertainty concrete in this case. *Exhibits I–K*.

109. Fair notice and protection against arbitrary enforcement inform the requested construction, while reasonable interpretations that preserve validity and the greater tolerance afforded civil regulation must also be considered. *Cocktail Fortune, Inc. v. Supervisor of Liquor Control*, 994 S.W.2d 955, 957–59 (Mo. banc 1999).

110. Breadth alone does not establish unconstitutional vagueness, and uncertainty in hypothetical applications does not establish lack of notice to a party whose own proposed activity is clearly covered. *Holder v. Humanitarian Law Project*, 561 U.S. 1, 20–23 (2010).

111. NSI A1 accordingly does not rely on the small-office example to deny the independent electrical-demand criterion already addressed above or to seek invalidation solely on the basis of uncertainty affecting others.

112. The requested declaration instead addresses NSI A1's present dispute over which preliminary activities Section 2 permits and which identifiable standards govern consideration of its Section 5 request.

113. That declaration would preserve the Council's lawful discretion and all applicable review requirements without ordering a favorable Section 5 resolution or treating preliminary guidance as final development approval.

114. The City must identify a consistent boundary between preliminary assistance and prohibited application processing.

115. If the Court instead construes Section 2 to reach the requested preliminary activities, NSI A1 relies on the preserved facial claims and the equitable ground below.

116. The fact that a City-administered step is mandatory does not itself create an unstated grandfather clause.

117. This alternative ground does not extend the facial claims' exhaustion analysis to every Project-specific zoning dispute.

118. No completed application-level zoning decision is presented for reversal here; the pleaded injury is the City's current refusal to permit the process needed to obtain one.

119. If a particular request requires an available administrative determination or appeal, NSI A1 seeks preservation of that route, while the facial claims remain independently justiciable.

II.B. The City's affirmative directions and reversal support a limited equitable estoppel theory.

120. Equitable estoppel is the appropriate doctrine for the alleged inconsistent representations and detrimental reliance.

121. It requires an inconsistent statement or act, action taken in reliance, and resulting injury.

122. Against a governmental entity, NSI A1 must also prove affirmative misconduct and exceptional circumstances warranting relief to prevent manifest injustice, by clear and satisfactory evidence. *Fraternal Order of Police Lodge No. 2 v. City of St. Joseph*, 8 S.W.3d 257 (Mo. App. W.D. 1999).

123. *State ex rel. Casey's General Stores, Inc. v. City of Louisiana*, 734 S.W.2d 890, 893, 895–96 (Mo. App. E.D. 1987), supplies a useful land-use analogy.

124. Officials reassured a developer before it acquired property and pursued permits; the city later adopted an invalid residential zoning restriction.

125. The court held the city estopped from denying the building permit.

126. That holding supports consideration of affirmative assurances and reliance, but does not establish automatic vested rights whenever staff discusses a proposed use.

127. Here, the March 5 confirmation followed consultation with an assistant director; the City then accepted a numbered predevelopment application, directed use of a mandatory review sequence, and produced departmental comments addressing the submitted layout and the disclosed electrical requirements. *Exhibit C*, p. 1; *Exhibits D, F*, and *G*.

128. NSI A1 contends that the City induced it to develop the Project through that sequence and then used the absence of a later formal application, coupled with a contrary categorical use position, to deny access to the next stage.

129. The subsequent assurance of continued predevelopment work and refusal of the corresponding project-specific input reinforce that contention. *Exhibit J*, pp. 6–7; *Exhibit I*.

130. The reliance evidence must identify expenditures or binding commitments made after the relevant assurances, the disclosed Project configuration to which each assurance applied, and how the City's directions affected the review sequence.

131. The May 24 e-mail reporting substantial engineering and design work supports further proof of timing and reliance, and quantifiable recoverable and irretrievable loss. *Exhibit F*, pp. 1–2.

132. The pleaded affirmative misconduct is the City's allegedly misleading use of the very review sequence it directed NSI A1 to follow: representing that the described use could proceed through the required process, accepting and reviewing the submission, and later treating compliance with that sequence as a reason to deny meaningful access while directing NSI A1 back to a preliminary route that has not functioned as represented.

133. NSI A1 relies on an existing PD's permitted-use language and requests access to review.

134. Nevertheless, the express reservations in this Project's review summary must be given effect; estoppel cannot turn them into final approval or a promise that regulations would never change. *Exhibit G*, p. 3.

135. The requested estoppel would prevent the City from invoking its inconsistent procedural and use-classification positions to foreclose review of the same disclosed Project before an ordinary, reviewable determination.

136. The requested relief is confined to lawful administrative functions and leaves the City free to identify material differences in the proposed use, request missing information, apply valid standards, and issue a reasoned determination subject to any available appeal.

137. If the evidence does not establish authority, reasonable reliance, affirmative misconduct, or exceptional circumstances, this alternative ground may fail without defeating the facial claims.

138. NSI A1 therefore relies on equitable estoppel and the existing delay and irreparable-harm allegations; it does not ask the Court to infer a permanent surrender of municipal police power from elapsed time alone.

III. Without interim relief, the ordinance will cause harm that later relief cannot fully repair.

139. The ordinance does not merely postpone a single decision.

140. It prevents intake, completeness review, site and building review, utility evaluation, and creation of the administrative record through which NSI A1 could obtain and challenge a project-specific decision. *Exhibit A*, § 2.

141. NSI A1 has already incurred substantial planning, design, professional, and development expense.

142. More importantly for equitable relief, the City's prohibition consumes a finite sequence of time-sensitive reviews and impairs project scheduling, utility planning, and counterparties in ways a later damages judgment against the City may not restore.

143. The moratorium's approaching November 17 expiration heightens the need for prompt process. *Exhibit A*, § 2.

144. Without an expedited hearing, the ordinance may consume most or all of its own alleged operative period before judicial review can provide effective interim relief.

145. At hearing, NSI A1 will support these allegations with sworn, nonconclusory evidence identifying application readiness, committed project expense, financing or tenant milestones, long-lead equipment or vendor commitments, utility-study or interconnection timing, and the consequences of continued inability to enter the review process.

146. The represented predevelopment route has not reduced that harm because it produced neither resumed project-specific processing nor the utility and technical information needed to pursue the City's discretionary Section 5 route. *Exhibits I–K*.

147. Missouri recognizes injunctive relief where an invalid zoning enactment threatens irreparable injury to a property right. *State ex rel. Helujon, Ltd. v. Jefferson County*, 964 S.W.2d 531, 537–38 (Mo. App. E.D. 1998).

IV. The scheduled expiration is not the same relief as a present injunction.

148. The scheduled expiration of Ordinance 28306 is not the same relief NSI A1 seeks because the ordinance remains operative on the hearing date and continues to bar actual intake and processing during every remaining day.

149. Section 526.050 expressly authorizes an injunction when continuation of an act during litigation would produce injury or render the eventual judgment ineffectual.

150. NSI A1 seeks no guaranteed approval but only an enforceable direction that the City and those bound by the injunction accept and ordinarily process complete Project submissions under valid law without relying on Ordinance 28306.

151. Calendar expiration operates only prospectively and cannot restore consumed review time, place the Section 5 request on an agenda, or compel project-specific processing.

152. A restriction is not moot merely because its predetermined sunset approaches while it remains operative, although actual expiration may later eliminate purely prospective anti-restriction relief. *Rinne v. Camden County*, 65 F.4th 378, 385–86 (8th Cir. 2023).

153. The same Project and submissions remain restrained, and the City's represented predevelopment route has not yielded project-specific processing. *Exhibits I–K*.

154. If the ordinance expires before the Court rules and the City and City Utilities fully resume ordinary processing without a successor barrier, prospective relief may require reassessment, but that unoccurred state does not eliminate the concrete restraint in force at hearing.

155. The requested order supplies immediate process that calendar expiration does not, while preserving every otherwise-valid standard and lawful merits outcome.

V. The balance of harms and public interest favor ordinary processing under valid law.

156. The proposed injunction imposes no project approval and no utility commitment.

157. The City retains authority to insist on complete applications and fees, conduct technical review, enforce PD 251 and all otherwise-valid codes, obtain public input through lawful procedures, and approve, condition, or deny submissions on grounds independent of Ordinance 28306.

158. The public has a substantial interest in responsible review of electrical service, noise, water use, fire protection, and infrastructure requirements.

159. Ordinary processing advances that interest by generating technical information.

160. A blanket refusal to receive information does not.

161. The public also has a concrete interest in the procedural protections the General Assembly prescribed for zoning legislation.

162. A narrow injunction preserves both interests: it restores review while leaving substantive safeguards untouched.

163. Like the broadband networks that support modern commerce, education, and communications, domestic computing infrastructure provides a physical foundation for services whose benefits extend beyond the property where the equipment is located.

164. The national importance of that foundation is reflected in the Pentagon's January 9, 2026 memorandum, Artificial Intelligence Strategy for the Department of War, which identifies expanded access to AI computing infrastructure, "from datacenters to the edge," and partnerships with private industry as means of advancing national defense capabilities. *Exhibit P*, pp. 1, 3.

165. That federal recognition supports consideration of the broader public benefits of responsible domestic digital infrastructure alongside the community's legitimate interests in reliable utilities, public safety, and appropriate land use.

166. The requested injunction accommodates those interests by restoring the ordinary review through which the City can evaluate this Project's actual characteristics and impacts while preserving applicable requirements governing any eventual approval or provision of utility service.

167. The City's incomplete Sunshine response is not offered as a substitute for proof that Ordinance 28306 is invalid, but it is relevant to the equitable setting because the records

most likely to disclose the moratorium's rationale, procedure, and implementation remain unproduced. *Exhibits L–O*.

168. The Court need not characterize that conduct as bad faith to recognize that the resulting information asymmetry is of the City's own making and should not be used to draw adverse inferences against NSI A1 from gaps in the present record.

169. The City should not obtain an equitable advantage from a record it left incomplete after inviting NSI A1 to fund the search, receiving NSI A1's acceptance, and supplying neither a means to pay nor a new completion date. *Exhibit M*, pp. 1–3; *Exhibit N*, pp. 1–6.

REQUESTED ORDER AND SECURITY

170. NSI A1 requests that the Court set the motion for the earliest practical noticed evidentiary hearing and, after hearing, enter the separately submitted proposed order.

171. Under Rule 92.02(d) and § 526.070, NSI A1 requests that security be set in a nominal amount, suggested at \$1, because the order would require only acceptance and ordinary processing, would not compel approval or utility service, and would preserve the City's independent regulatory authority.

172. NSI A1 will post any security the Court determines is proper before the injunction becomes effective.

173. If the Court declines the full processing injunction, NSI A1 alternatively requests an order identifying the ordinary preliminary activities allowed under Section 2 and restraining reliance on the moratorium to prevent those activities, or granting the limited protection warranted by the estoppel evidence.

174. Any such order should specify the affected activities and persons bound, preserve the City's lawful review authority, and become effective upon the required security.

175. NSI A1 also requests construction of Section 5 identifying the standards governing consideration of its limited processing request, without directing the Council to grant a resolution.

176. WHEREFORE, Plaintiff respectfully requests an expedited noticed hearing, entry of the requested preliminary injunction upon posting of security, and such further relief as the Court deems just.

Respectfully submitted,

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